

PENETRATION TESTING LICENSE AGREEMENT

Between

ParoCyber (Pty) Ltd

And

Samuel Nkanyane

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1. INTRODUCTION

This Penetration Testing License Agreement ("Agreement") is entered into on the ___ day of ____ 20__, between ParoCyber (Pty) Ltd, a cybersecurity services provider incorporated under the laws of [Country], hereinafter referred to as "ParoCyber," and [Client Name], hereinafter referred to as "Client."

This Agreement establishes the rights, responsibilities, and obligations governing the provision of penetration testing services and authorizes ParoCyber to perform controlled security assessments on specified Client systems.

2. DEFINITIONS

"Penetration Testing" means the authorized simulation of cyberattacks on the Client's systems, networks, applications, and infrastructure to identify vulnerabilities.

"Client Systems" refers to all networks, IP addresses, domains, applications, and digital assets explicitly listed in the Scope of Engagement.

"Sensitive Data" includes any data protected under applicable privacy laws.

"Rules of Engagement (RoE)" means the detailed operational guidance for how the penetration test will be executed.

"Report" refers to the documentation delivered by ParoCyber containing findings, evidence, and remediation recommendations.

3. SCOPE OF ENGAGEMENT

ParoCyber shall perform penetration testing activities on the Client Systems outlined in Appendix A...

4. AUTHORIZATION TO CONDUCT PENETRATION TESTING

The Client hereby grants ParoCyber explicit, written authorization to access, probe, test, deploy controlled exploits, perform vulnerability scans, and simulate adversarial behavior within the RoE.

5. RULES OF ENGAGEMENT (RoE)

Testing will occur between [Start Date] and [End Date]. No destructive actions unless authorized. Client informs monitoring teams. Secure communication channel required.

6. TESTING METHODOLOGY

ParoCyber will use OWASP WSTG, OWASP Mobile Guide, NIST SP 800-115, MITRE ATT&CK, PTES. Phases include Reconnaissance, Enumeration, Vulnerability Analysis, Exploitation, Post-Exploitation, and Reporting.

7. CLIENT RESPONSIBILITIES

Client provides accurate scope, approvals, backups, credentials, contacts, and business awareness.

8. PAROCYBER RESPONSIBILITIES

Ethical testing, minimize disruptions, protect data, maintain confidentiality, report critical findings, provide documentation.

9. CONFIDENTIALITY & DATA PROTECTION

Both parties maintain confidentiality. ParoCyber encrypts data, destroys Client data after 30 days, complies with POPIA/GDPR.

10. REPORTING REQUIREMENTS

ParoCyber delivers Executive Summary, Technical Findings, CVSS scoring, evidence, remediation guide, and final presentation.

11. INTELLECTUAL PROPERTY RIGHTS

All tools and methodologies remain ParoCyber property. Client receives limited internal-use license.

12. LIABILITY & INDEMNIFICATION

ParoCyber not liable for pre-existing vulnerabilities, instability, losses outside RoE, or third-party outages.

13. SERVICE FEES & PAYMENT TERMS

50% on signing, 50% on delivery. Late interest applies. Additional costs billed with approval.

14. INCIDENT HANDLING & EMERGENCY PROCEDURES

Immediate notification of active exploitation, halt testing, assist with containment.

15. WARRANTIES & DISCLAIMERS

No guarantee all vulnerabilities will be found; testing may cause disruptions.

16. TERM, RENEWAL & TERMINATION

Agreement valid until deliverables complete. Termination for convenience or breach.

17. COMPLIANCE WITH LAWS & REGULATIONS

Both parties comply with privacy and cybersecurity laws.

18. FORCE MAJEURE

No liability for events beyond control.

19. GOVERNING LAW & JURISDICTION

Governed by laws of [Country].

20. ENTIRE AGREEMENT & AMENDMENTS

Entire understanding; amendments require signatures.

21. SIGNATURES

For ParoCyber (Pty) Ltd:

Name: _____

Title: _____

Signature: _____

Date: _____

For Client:

Name: _____

Title: _____

Signature: _____

Date: _____